

		Creditor's counsel is ordered to file and serve notice of this ruling on ALL judgment debtors and Chase within five court days of the hearing on this motion.
9.	<i>Santos vs. Crenshaw Manufacturing Inc.</i> 2025-01488879	Before the court is the motion of Waleed Mansour (Mansour) to set aside void abstract of judgment, release judgment lien, and request for attorney fees and costs. As more fully set forth below, the motion is GRANTED as to the request to set aside the abstract of judgment and release judgment lien, but the motion is DENIED as to the request for attorney fees and costs. On or about July 14, 2023, judgment creditor Marivel Santos (Santos) prevailed against judgment debtor Crenshaw Manufacturing Inc. (Crenshaw) before the Workers' Compensation Appeals Board and obtained an award against Crenshaw in the amount of \$194,386.55 plus an award of attorney fees to Santos's counsel in the amount of \$29,158. That award was entered as a judgment in favor of Santos and against Crenshaw on June 3, 2025. On June 18, 2025, Santos filed an abstract of judgment against Crenshaw based on the judgment. That abstract, however, also listed Mansour as an additional judgment debtor even though neither the Workers' Compensation Appeal Board award nor the judgment was against Mansour. On or about March 12, 2026, Mansour's attorney sent Santos's attorney a letter requesting Santos recall the abstract of judgment because it erroneously included Mansour as a judgment debtor when he was not named in either the award or the judgment. Santos's counsel refused, and instead, one week later, filed a motion to add Mansour as a judgment debtor. On May 28, 2026, the court denied that motion because Santos failed to make a sufficient evidentiary showing to support amending the judgment. "An abstract of judgment that asserts the existence of a judgment of a certain monetary amount when there is no such judgment does not comply with Code of Civil Procedure section 674. An abstract of judgment obtained fraudulently and not in compliance with Code of Civil Procedure section 674 because it does not accurately reflect '[t]he amount of the judgment,' may be cancelled or otherwise voided by a court. (<i>Id.</i>, subd. (a)(5); see <i>Sanai v. Saltz</i> (2009) 170 Cal.App.4th 746, 759, fn. 7 [88 Cal.Rptr.3d 673] [an abstract obtained by a plaintiff was 'recalled and quashed' where court found that the

plaintiff had “fraudulently obtained” an abstract of judgment for a monetary amount that had not been awarded and “wrongfully caused this Abstract of Judgment to be recorded with the Los Angeles County Recorder's Office”]; see also *In re Michael S.* (2007) 147 Cal.App.4th 1443, 1456, 54 Cal.Rptr.3d 920 [in dicta, addressing an abstract obtained by a county that ‘should never have been applied for or issued in the first place in any amount greater than \$25,000 because it was that figure which was the true “total amount of judgment” entered against [a juvenile's mother] as “judgment debtor” and stating that ‘an abstract of judgment cannot indicate a liability on the part of a judgment debtor in excess of the judgment creating that liability in the first place’ (italics omitted)].)” (*Weeden v. Hoffman* (2021) 70 Cal.App.5th 269, 295 [footnote omitted].)

Here, the abstract of judgment does not comply with the requirement of Code of Civil Procedure section 674 because it falsely represents the judgment in the action (and the award of the Workers’ Compensation Appeals Board) was entered against Mansour in addition to Crenshaw. That is false on the face of the record and renders the abstract void and subject to being recalled and quashed.

Santos argues the court should continue this motion until after the court hears his renewed motion to amend the judgment to add Mansour and the Workers’ Compensation Appeals Board hearing his petition to add Mansour to the award. Santos further argues the inclusion of Mansour is merely a technicality and the court should consider the facts of the underlying award against Crenshaw. He asks the court to consider this motion in the larger context of his efforts to enforce the award and judgment.

All of that, however, is irrelevant. Regardless of the underlying facts and the greater context, Santos had no right to file and record an abstract of judgment against Mansour—i.e., a person who is not a judgment debtor. It does not matter that Santos believes he has a basis to add Mansour as a judgment debtor. He has no right or ability to file and record an abstract of judgment against Mansour unless and until Mansour is made a judgment debtor. Indeed, it is highly improper to file and record an abstract of judgment against a person based on the hope and expectation the person will be added to the judgment in the future. Moreover, there is no basis for Santos to claim this was a mistake or error. Indeed, Santos did nothing about the improper abstract of judgment for many months until Mansour’s counsel pointed out its impropriety. Rather than

		withdraw the abstract, however, Santos doubled down and hastily prepared and filed his prior (unsuccessful) motion to amend the judgment. Accordingly, the motion is GRANTED as to the request for order setting aside the void abstract of judgment and releasing judgment lien. This motion is granted under Code of Civil Procedure section 473, subdivision (d), on the ground the abstract of judgment is void and it never should have been filed or recorded against Mansour. Although Code of Civil Procedure section 697.410 appears generally to be designed to address improper abstracts of judgment and authorizes a motion to remove an improper abstract, the language of that statute specifically limits it to situations in which “a recorded abstract of a money judgment . . . appears to create a judgment lien on real property of <u>a person who is not the judgment debtor because the name of the property owner is the same as or similar to that of the judgment debtor.</u>” (Code Civ. Proc., § 697.410, subd. (a) [underlining and bold font added].) Here, Mansour is named in the abstract of judgment—albeit erroneously—and the lien it created was not due to his name being the same as or similar to the proper judgment debtor. As such, it appears that code section does not apply in these circumstances. For that reason, the request for attorney fees and costs under section 697.410 is DENIED. The request for attorney fees under Code of Civil Procedure section 128.5 also is DENIED as procedurally improper. That section requires a motion for sanctions under that section “be made separately from other motions or requests.” (Code Civ. Proc., § 128.5, subd. (f)(1)(A).) Citing <i>Changsha Metro Group Co., Ltd. v. Xufeng</i> (2020) 57 Cal.App.5th 1, 23, Mansour argues section 128.5 simply requires notice and an opportunity to be heard, not a separate motion. The statutory language, however, clearly requires a separate motion and the <i>Changsha Metro Group</i> case does not apply here. That case addressed a request for sanctions for a frivolous anti-SLAPP motion. The anti-SLAPP statute (Code of Civil Procedure section 425.16) incorporates section 128.5 in authorizes sanctions for a frivolous anti-SLAPP motion: “If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, pursuant to Section 128.5.” (Code Civ. Proc., § 425.16, subd. (c)(1).) The
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		<i>Changsha Metro Group</i> court conclude, in incorporating the standards of section 128.5, section 425.16 did not incorporate the requirements set forth in 128.5, subdivision (f), because they were impracticable given the strict and short deadlines section 425.16 otherwise imposes: "Due to the lack of practical insight into how one could make section 128.5, subdivision (f) function in an anti-SLAPP context and due to a lack of meaningful analysis of legislative history, we find defendants' criticism to be unpersuasive. Accordingly, as set forth ante, the proper procedure for a trial court to follow in regard to a request for attorney's fees related to a frivolous anti-SLAPP motion is the procedure set forth in subdivisions (a) and (c)." (<i>Changsha Metro Group, supra</i>, 57 Cal.App.5th at p. 23.) Accordingly, <i>Changsha Metro Group's</i> holding is limited to the anti-SLAPP context and Mansour has not shown any reasons why the requirement of section 128.5, subdivision (f) should not apply in the context of this case. The denial of the sanctions and fees request is without prejudice to any future motion or other request, and this ruling does not foreclosure any claim for damages that may arise out of the improper filing and recording of the abstract of judgment. To be clear, the court also expresses no opinion on the propriety or merits of Santos's renewed motion to amend or his pending petition before the Workers' Compensation Appeals Board. This ruling vacating and quashing the abstract of judgment is based on Santos's improper filing and recording of the abstract before Mansour is added as a judgment debtor; it does not express any opinion as to whether Mansour can or should be added as an additional judgment debtor in the future. This ruling also is without prejudice to Santos submitting a new abstract of judgment consistent with the current judgment in this action. Mansour is ordered to give notice of this ruling and to submit a proposed order, suitable for recordation, releasing any lien created by the abstract of judgment and vacating the entry of the abstract by the court.
10.	<i>Hoang vs. South Longspur Trust, Dated 6/6/2018</i> 2018-01021633	Before the court is the motion of defendant South Longspur Trust Dated 6/6/2018 (Longspur) for monetary sanctions pursuant to Code of Civil Procedure section 128.7. The motion seeks sanctions against plaintiff Nam Neil Hoang (Plaintiff) based on a motion to vacate and a motion for